

Session and Chapter.	Short Title.	Extent of Repeal.
39 & 40 Vict. c. 70.	The Sheriff Courts (Scotland) Act, 1876.	Sections 4 to 25, both inclusive. Sections 27 to 34, both inclusive. Sections 46 to 52, both inclusive. Section 54, except in so far as it relates to commissary regulations. All the schedules.
40 & 41 Vict. c. 50.	The Sheriff Courts (Scotland) Act, 1877.	The whole Act.
52 & 53 Vict. c. 26.	The Small Debt Amendment (Scotland) Act, 1889.	Section 8.
61 & 62 Vict. c. 8.	The Sheriffs Tenure of Office (Scotland) Act, 1898.	The whole Act.

CHAPTER 52.

An Act to amend section seventy-eight of the Merchant Shipping Act, 1894, with respect to the deduction of the space occupied by propelling power in ascertaining the tonnage of a ship. [28th August 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Restriction on deduction for space occupied by propelling power.
57 & 58 Vict.
c. 60.

1. The deduction under section seventy-eight of the Merchant Shipping Act, 1894 (in this Act referred to as "the principal Act"), for the space occupied by the propelling power of a ship shall not in any case exceed fifty-five per cent. of that portion of the tonnage of the ship which remains after deducting from the gross tonnage any deductions allowed under section seventy-nine of the principal Act: Provided that—

- (a) This section shall not apply to steam ships constructed for the purpose of towing vessels so long as they are exclusively employed as tugs, but if and when employed for the carriage of passengers, cargoes, or stores, or using graving docks or dry docks or places provided for the repairing of vessels, the register tonnage, on which dues based on register tonnage may be levied by any harbour or dock authority, shall be ascertained in manner provided by the Merchant Shipping Acts, 1894 to 1906, as amended by this Act; and

- (b) This section shall not come into operation until the first day of January nineteen hundred and fourteen in the case of the following ships (in this Act referred to as existing ships), namely, ships constructed, or the construction of which has been commenced, before the first day of May nineteen hundred and seven, and ships a contract for the construction of which has been made before the first day of May nineteen hundred and seven, though the construction has not actually commenced before that date.

2. Nothing in this Act shall affect any power which any dock or harbour authority have under any Act or Order confirmed by Parliament or having the effect of an Act of Parliament to charge tonnage rates, dues, or charges otherwise than on registered or register tonnage.

Saving for authorities having power to charge otherwise than on register tonnage.

3.—(1) Where, in ascertaining the tonnage of an existing ship, a deduction has been made for the space occupied by the propelling power of the ship greater than the maximum deduction allowed under this Act, the tonnage of the ship shall, before the date on which this Act comes into operation as respects that ship, be recalculated on the basis of allowing the maximum deduction under this Act instead of that previously allowed, and the necessary alteration of the particulars and certificate of the registry of the ship shall be made and shall take effect on that date.

Provisions as to ships already registered.

(2) The registrar of every port of registry shall make any alteration in the particulars of the registry of any ship registered at that port, which is required for the purposes of this section, and shall send notice of the alteration so made to the managing owner of the ship.

(3) The managing owner of the ship, on the receipt of any such notice of alteration, shall forthwith transmit the notice to the master of the ship, and the master of the ship on receipt of the notice shall produce it to the registrar of the port at which the ship is when the notice is received, if that port is a port having a registrar, and, if not, to the registrar of the first port having a registrar at which the ship arrives after the notice is received, and the registrar shall alter the certificate of registry of the ship in accordance with the notice.

(4) If the managing owner or master of a ship fails to comply with the provisions of this section, the managing owner or master, as the case may be, shall be liable on summary conviction, in respect of each offence, to a fine not exceeding fifty pounds.

(5) The expression "managing owner" in this section includes any person registered under section fifty-nine of the principal Act in cases where there is no managing owner.

Short title
construction,
and commence-
ment.

4. This Act may be cited as the Merchant Shipping Act, 1907, and shall be construed as one with the principal Act, and the Merchant Shipping Acts, 1894 to 1906, and this Act may be cited together as the Merchant Shipping Acts, 1894 to 1907.

CHAPTER 53.

An Act to amend the Public Health Acts.

[28th August 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

GENERAL.

Division of
Act into Parts.

1. This Act is divided into Parts as follows :—

Part I.—General.

II.—Streets and buildings.

III.—Sanitary provisions.

IV.—Infectious diseases.

V.—Common lodging-houses.

VI.—Recreation grounds.

VII.—Police.

VIII.—Fire brigade.

IX.—Sky signs.

X.—Miscellaneous.

Short title,
construction,
and extent of
Act.

2.—(1) This Act shall be construed as one with the Public Health Acts.

(2) Part I. of this Act shall extend to England and Wales and Ireland exclusive of the administrative County of London, and all or any of the remaining Parts or all or any of the sections thereof shall extend to any district to which all or any of those Parts or sections are applied by an Order of the Local Government Board or of the Secretary of State as the case may be.

(3) This Act may be cited as the Public Health Acts Amendment Act, 1907, and this Act and the Public Health Acts may together be cited as the Public Health Acts, 1875 to 1907.

(4) Any byelaws made under any enactment for which any provisions of this Act are substituted shall remain in force as if the byelaws had been made under the corresponding provisions of this Act.

(5) This Act shall come into operation on the first day of January one thousand nine hundred and eight.